

ADMISSION REQUIREMENTS

The School Board shall require that parents, guardians, or other persons having control or charge of a school age child meet all admission requirements prior to a student enrolling in Loudoun County Public Schools.

A. Admission Requirements for All Students.

1. Residency, Identification and Custody. Students seeking admission must meet the LCPS residency requirements outlined in Policy 8115, Individuals Who May Be Admitted Free, or apply for admission as non-resident tuition students under paragraph F of this policy. Verification of the parent or guardian's identity is required and proof of legal custody may be required.

2. Birth Certificate Required. No student shall be admitted for the first time to any school in Loudoun County unless the person enrolling the student presents the original or certified copy of the student's birth record. The principal or designee shall enter the official state birth number in the student's permanent school record. If the original or certified copy cannot be obtained, the person enrolling the student shall submit a notarized affidavit setting forth the student's age and explaining the inability to furnish a certified copy.

If the student is identified as homeless under the Education for Homeless Children and Youth program within the McKinney-Vento Homeless Assistance Act, as reauthorized under Title IX, Part A of the Every Student Succeeds Act (ESSA) and the McKinney-Vento Homeless Education Act as defined in the Code of Virginia [§ 22.1-3\(A\)\(7\)](#), and/or [42.U.S.C. § 11302](#) and cannot provide the required documentation, school staff shall enroll the student immediately and refer the student to the McKinney-Vento liaison. The school staff shall work with the family to obtain required documentation in a timely manner.

A student who has been placed in foster care by a local social services agency shall be immediately enrolled even if the placing social services agency is unable to produce the documents required for enrollment. In such cases, the person enrolling the student must provide a written statement that, to the best of their knowledge, sets forth the student's age, compliance with the requirements of the Code of Virginia [§ 22.1-3.2](#) and indicates that the student is in good health and is free from communicable or contagious disease.

If the lack of a birth certificate prevents the principal from determining the student's age, they may still be admitted if the Division Superintendent, or designee, determines that the person submitting the affidavit presents information sufficient to estimate with reasonable certainty the age of the student.

In accordance with Policy 8435(A)(1), the failure of any person enrolling a child to present the original or certified copy of the birth certificate of the student shall be immediately reported to the local law-enforcement agency by the principal or designee.

ADMISSION REQUIREMENTS

The notice to the law-enforcement agency shall include copies of the submitted proof of the student's identity and age and the affidavit explaining the inability to produce the original or certified copy of the birth certificate.

Additionally an original birth certificate or a certified copy is not provided by the parent or guardian at the time of enrollment for any student transferring into LCPS, within fourteen days after enrolling the student, the principal, or designee, shall request that the principal, or designee, of the school from which the student transferred, submit documentation that the original or certified copy was presented upon the student's enrollment at that school.

3. Age for Admission to Kindergarten or First Grade. To be eligible for admission to kindergarten, a student must be five years of age on or before September 30 of the school year. A birth certificate shall be presented during the registration process as verification of the student's age.

A kindergarten-age student may be placed in first grade if they were enrolled in and has successfully completed a kindergarten program in a public school system in another state or in a non-public school recognized as participating in the accreditation program under the guidance of the Virginia Council for Private Education.

Any student who is six years of age on or before September 30 of the school year is eligible for admission to first grade, provided they have the skills needed to do the grade level work. If, in the opinion of the student's parents and the principal, the student is not ready for first grade, they shall be admitted to kindergarten. A birth certificate shall be presented on or before the first day of school as verification of the student's age.

4. Immunization Requirements. Any student seeking admission to a Virginia school for the first time must meet state requirements for immunizations before being admitted. For specific immunization requirements, see Policy 8410, Immunization Requirements.

Children of military families, without documentation of immunizations, should be immediately enrolled and shall have up to 30 days from the date of enrollment to obtain any required immunizations unless otherwise provided for under Policy 8410, Immunization Requirements.

Children in foster care, without documentation of immunizations, should be immediately enrolled and shall have up to 30 days from the date of enrollment to obtain any immunizations.

Children certified as McKinney Vento, without documentation of immunizations, should be immediately enrolled as required by the Education for Homeless Children and Youth Program within the McKinney-Vento Homeless Assistance Act, as reauthorized under

ADMISSION REQUIREMENTS

Title IX, Part A of the Every Student Succeeds Act (ESSA).

5. Physical Examination. No student shall be admitted for the first time to any LCPS pre-k program, kindergarten or elementary school unless a comprehensive physical examination report, of a scope prescribed by the State Health Commissioner, and performed within twelve months of the date of entrance, is provided from a United States licensed physician, advanced practice registered nurse, or physician assistant acting under the supervision of a licensed physician. This report must be received prior to admitting the student to school.

If a student attended another school or school division and their school records show that a report of a physical examination was furnished at the time of his/her first admission, the principal may accept the school records as verification of the physical examination.

If a student is a homeless student as defined in the Code of Virginia [§ 22.1-3](#) and/or the Education for Homeless Children and Youth Program within the McKinney-Vento Homeless Assistance Act, as reauthorized under Title IX, Part A of the Every Student Succeeds Act (ESSA) and for that reason cannot furnish the physical exam report, and the person seeking to enroll the student furnishes an affidavit so stating and also indicates that to the best of their knowledge, the student is in good health and free from any communicable or contagious disease, the School Division shall immediately refer the student to the McKinney-Vento Liaison, as described in the federal Education for Homeless Children and Youth Program within the McKinney-Vento Homeless Assistance Act, as reauthorized under Title IX, Part A of the Every Student Succeeds Act (ESSA). The local school McKinney-Vento liaison shall, as soon as practicable, assist in obtaining the necessary physical examination by the public health department or other clinic or physician's office and the registrar shall immediately admit the student to school, as required by such Act.

The physical examination is required for admission of every pre-k, kindergarten or elementary school student unless the parent or guardian objects on religious grounds and states in writing that, to the best of his/her knowledge, the child is in good health and is free from any communicable or contagious disease. In such case, the Nurse or Resource Nurse shall verify that the child shows no visual evidence of sickness.

The report of the physical examinations or the parent's statement of religious objection and the student's health shall be placed in the student's school records.

6. Health Information. Parents or guardians of all students entering any LCPS for the first time shall complete Part 1 of the Virginia School Entrance Health Information Form and return it to the school within 15 days of receipt. Upon failure of the parent to complete such form within the extended time, the Division Superintendent or designee may send the parent written notice of the date he/she intends to exclude the

ADMISSION REQUIREMENTS

student from school; however, no student who is a homeless child or youth as defined in the Code of Virginia [§ 22.1-3\(A\)\(6\)](#) and/or the Education for Homeless Children and Youth Program within the McKinney-Vento Homeless Assistance Act, as reauthorized under Title IX, Part A of the Every Student Succeeds Act (ESSA) shall be excluded from school for such failure to complete such form per the Code of Virginia [§ 22.1-271.2](#). Reasonable extension may be granted by the principal for good cause, but such extensions should be only for a specified time necessary for the parents to complete the form.

Principals shall report to the Assistant Superintendent for Student Services or designee, all cases in which they have been unable to obtain compliance of parents. The Superintendent is authorized by state law to exclude from school any student whose parent fails to complete and return the form within the time allowed.

7. Tuberculosis Screening Requirement. Per the Code of Virginia, no student shall be admitted for the first time to any school in Loudoun County without a tuberculosis screening.

This tuberculosis screening requirement applies to all children except students who are homeless, as defined under the Code of Virginia [§ 22.1-3](#), and/or the Education for Homeless Children and Youth Program within the McKinney-Vento Homeless Assistance Act, as reauthorized under Title IX, Part A of the Every Student Succeeds Act (ESSA) until such time as arrangements can be made with the public health department, clinic or physician's office to obtain a tuberculosis screening.

Documentation of this screening must be signed by a physician, advanced practice registered nurse, physician assistant, or registered nurse licensed in the United States. If testing is required, the student may not be enrolled until the parent or legal guardian provide written documentation from an authorized licensed medical provider stating that the student is free of active or communicable tuberculosis.

Elementary students who require testing due to recent entry in the United States from a foreign country and present a temporary medical exemption from an authorized licensed medical provider stating testing must be delayed to ensure an accurate result, may not be enrolled if the School Nurse or Resource Nurse verify that the student visibly demonstrates symptoms consistent with tuberculosis.

8. Student's School Status. Prior to the admission of any student, the parent, guardian, or other person having control or charge of the student shall provide:

- a. A signed or sworn statement or affirmation indicating whether the student has been expelled from school attendance at a private school or in a public school division of the Commonwealth of Virginia or in another state for an offense in violation of school

ADMISSION REQUIREMENTS

board policies relating to weapons, alcohol or drugs, or for the willful infliction of injury to another person. This document shall be maintained as a part of the student's scholastic record; and

- b. A signed or sworn statement or affirmation indicating whether the student has been found guilty of or adjudicated delinquent for any offense listed in the Code of Virginia [§ 16.1-260\(G\)](#) or any substantially similar offense under the laws of any state, the District of Columbia, or the United States or its territories. This document shall be maintained as provided in the Code of Virginia [§ 22.1-288.2](#).

When the child is registered as a result of a foster care placement as defined in the Code of Virginia [§ 63.2-100](#), the information required herein shall be furnished by the local social services agency or licensed child-placing agency that made the foster care placement.

Any person making a materially false statement or affirmation may be charged with a Class 3 misdemeanor.

The principal should also request the student's scholastic record from the school they had formerly attended. This scholastic record should include both the cumulative and confidential records, including the disciplinary record, of the student.

B. Admission of Transfer Students from Other Public or Department of Defense (DOD) Schools. A student transferring from another public or DOD school shall be admitted to the grade they would have attended in the school from which the student transferred. If there is reasonable uncertainty about the proper grade placement, special education needs, or other information needed to determine eligibility for admission or proper placement, the student shall not be admitted until previous school records or other sufficient information has been obtained. Every effort shall be made to obtain such records or information promptly.

C. Admission of Students Covered Under the Interstate Compact on Educational Opportunities for Military Children. Special power of attorney, relative to the guardianship of a child of a military family, and executed under [Title 10 U.S. Code § 1044b](#), shall be sufficient for the purposes of enrollment and all other actions requiring parental participation and consent. No tuition shall be charged to a military child placed in the care of a noncustodial parent or other person standing in loco parentis who lives in a jurisdiction other than that of the custodial parent. The student may continue to attend the school in which they were enrolled while residing with the custodial parent.

Any student that qualifies for admission under the Interstate Compact on Educational Opportunities for Military Children will be admitted under Policy 8115, Individuals Who

ADMISSION REQUIREMENTS

May Be Admitted Free.

D. Admission of Students who are Children of Certain Federal Employees. A student transferring from another school shall be allowed to enroll in the school division of the student's intended residence if documentation is provided, at the time of enrollment, of Title 22 or 50 orders of the federal employee parent. Documentation indicating a permanent address within the school division shall be provided to the school division within 120 days of a student's enrollment or tuition may be charged, including tuition for the days since the student's enrollment. Students eligible to enroll in a school division pursuant to this section may register, remotely or in person, for courses and other academic programs and participate in the lottery process for charter schools and college partnership laboratory schools in the school division in which such student will reside at the same time and in the same manner as students who reside in the local school division.

E. Admission of Students from Non-Public or International Schools. Students transferring from non-public or international schools must present all available school transcripts, records, exam scores, or end of year report cards for review to assist with proper grade placement. Students may be tested to determine their proper grade placement. Students enrolling in grades 8 or higher must also be interviewed by a school counselor to determine, if applicable, appropriate transfer of high school credits for VDOE graduation requirements. International transcript evaluations will be conducted by the Welcome Center for all students enrolling from International Schools.

F. Admission of Students from Home Instruction. Students who have received home instruction and seek to enroll in LCPS will be admitted and placed in accordance with the following provisions:

1. Students may be tested by LCPS to determine their appropriate grade level.
2. Students will be placed in the appropriate grade by the principal of the school they enter.
3. High school credits will be accepted from home instruction only when documentation is provided from:
 - a. A school/program from an accredited organization recognized by LCPS;
 - b. A school/program recognized by the Virginia Council for Private Education, or

ADMISSION REQUIREMENTS

- c. A review of the official transcript by the principal or designee and director of guidance to determine whether the curriculum is commensurate with equivalent courses in LCPS.

G. Admission of Nonresident Students.

1. Students who do not meet the Residency or Free Admission for Non-Resident Students requirements of LCPS, as defined in Policy 8115, may be admitted as tuition students by the Division Superintendent, or designee, provided the following criteria are met:

- a. Their admission does not cause a class to exceed class size standards as defined in Policy 5065 or 5080 or the Virginia standards for special education class sizes. That is to say, admission of Nonresident Students will also not be permitted in an over-enrolled schools per Policy 8155, School Assignment.
- b. The student gives assurance of serious intent, regular attendance and good behavior.

2. The parents of a nonresident student shall request admission in writing to the Assistant Superintendent for Student Services, or designee, who shall investigate such student and recommend to the Division Superintendent, or designee, as to the admission of the student.

If the criteria for admission are met, the student may be admitted under the following conditions:

- a. Tuition shall be paid prior to the actual admission of the student;
- b. For students seeking to enroll for less than a full semester, a per-diem rate shall be charged; and
- c. There shall be no refund of tuition for any student who does not remain enrolled for the full period for which tuition was paid, regardless of the reason for the withdrawal of the student.

3. Upon admission, a tuition student becomes an LCPS student and is therefore under control of the Loudoun County School Board. The student is subject to all state laws and regulations and to Loudoun County School Board policies and individual school rules. Tuition students are therefore subject to the same disciplinary procedures and punishments as resident students.

ADMISSION REQUIREMENTS

H. Admission of Temporary Nonresident Students.

1. Children of school age, as defined in Policy 8115, who are nonresidents of the Commonwealth of Virginia but who are living temporarily with relatives or others within Loudoun County, may be admitted to LCPS by the Division Superintendent, or designee, provided the expected length of stay is 60 days or more and provided the other criteria for nonresident students of this policy are met.

2. Tuition shall be paid for temporary nonresident students as provided in paragraph F of this policy.

3. Any person having charge of any nonresident child of compulsory attendance age for 60 days or more is required by state law to keep the student in regular attendance in school and be responsible for the payment of tuition required herein or must return the student to the home of the parents or legal guardians.

4. This section shall not apply to foreign exchange students as provided in Policy 8115, Individuals Who May be Admitted Free.

[Former Policy 8-15 and Merges Former Policies: 8-15.1, 8-21 & 8-50]

Adopted: 8/11/70

Revised: 2/13/89, 6/22/93, 11/14/06, 8/11/09, 6/11/19

Current Revision: 6/17/25

Confirmed: 7/6/26

Leg Refs.: Code of Virginia §§ [22.1-1](#), [22.1-3](#), [22.1-3.1](#), [22.1-3.2](#), [22.1-5](#), [22.1-254](#), [22.1-254.1](#), [22.1-274.4](#), [22.1-270](#), [22.1-255](#), [22.1-271.1](#), [22.1-272](#), [22.1-277.2](#), [22.1-271.4](#), [22.1-360](#), [22.1-369](#), [22.1-370](#), [22.1-288.2](#), [2.1-49](#), [16.1-260](#), [22.1-288.2](#), [54.1-2957.02](#), [63.2-100](#), [10 U.S.C. § 1044b](#), [42 U.S.C. § 11431](#)

Cross Refs.: [Policy 8115](#), Individuals Who May Be Admitted Free; [Policy 8435](#), Reports of Missing Children; [Policy 8-51](#), Immunization Requirements; [Policy 5065](#), Kindergarten; [Policy 5080](#), Class Size; [Policy 8080](#), Home Instruction